Coolfont Mountainside Association

Design Guidelines & Building Regulations

Development & Architecture Control Committee
Updated: October 1, 2021

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I. PREFACE

These Design Guidelines and Building Regulations (Guidelines and Regulations) supersede all prior Guidelines and Regulations published by the Coolfont Mountainside Association, Inc. (CMA, the Association) and are authorized by the CMA Board of Directors (the Board) with an effective date of October 1, 2021. Owners with pending requests for approval are bound by the *Guidelines and Regulations dated December 2003* but are be encouraged to follow this new version. Any submissions received after the effective date of these Design Guidelines and Building Regulations are bound by them.

II. INTRODUCTION

In its founding documents, CMA was noted as "... a recreational community with permanent parks, wilderness, open spaces and other common facilities for the benefit of each lot owner." Later documents dealing with minimum standards for the community describe CMA in terms of "seasonal housing." Further, approvals from the West Virginia Department of Health for sewage collection and water distribution systems describe CMA houses as "...periodically occupied single residential cottages..." subject to certain design standards for those systems. Historical documents relating to CMA support those characterizations with only a small percentage of the residences becoming permanent residences for owners and long-term renters, with a growing number of permanent short-term rentals.

These Guidelines and Regulations are based on the appropriate portions of the documents that form the rules and legal basis for the operation and governance of the Association which take precedence:

- Bylaws of Coolfont Mountainside Association, Inc.
- Declaration of Covenants and Restrictions
- Coolfont Mountainside Association Inc. Regulations Regarding the Use of Property

Further, the applicable requirements of the State Health Department and Morgan County Subdivision Ordinance (as amended November 21, 2008) are incorporated by reference.

These Guidelines and Regulations are intended as an aid to lot owners, homeowners, prospective buyers, and their builders to enable them to avoid delays in the approval of their building plans, and consequently, in construction. A result of a collaborative effort between CMA owners, the Development & Architecture Control Committee (DACC), and the Board of Directors, they reflect the community's appreciation of the natural beauty of the mountainside and a commitment to preserve and enhance its natural advantages. Owners within CMA are required to provide a copy of these Guidelines and Regulations to their builder early in the planning process – whether a new house or facility or modification of an existing house or facility – to maximize their incorporation into the developmental stage of the project thereby minimizing the cost of any possible redesign later due to omissions or errors associated with the implementation of this document.

A. The DACC

The CMA Bylaws require that the Board create the Development and Architectural Control Committee (DACC) and appoint its members from current CMA owners. The DACC's primary responsibility is to advise

and assist the Board in the discharge of responsibilities relating to new development and modification to existing facilities and grounds within the Association.

The DACC works to foster careful design to maintain harmony between the buildings and their sites, and among the buildings themselves. The DACC review is to ensure the exterior of buildings are constructed with good quality materials and workmanship that blend with the natural environment.

The submission and approval of the required documents for any project by DACC is for the sole purpose of determining if the proposed project complies with these CMA Guidelines and Regulations. DACC's review is not for completeness, technical accuracy, or technical content of the documents, or structural integrity. CMA and the DACC do not assume any professional responsibility or liability in the construction of these projects.

The Committee will review these architectural regulations every five years and recommend changes to the CMA Board of Directors, striving for historical consistency while incorporating technological and architectural improvements.

B. Violations

Failure to conform to these Guidelines and Regulations constitutes grounds for the rejection or revocation of the application under the authority provided in the Bylaws and Covenants.

Owners who do not conform to the requirements by the DACC or the Board will be compelled to correct the construction at their expense, provide restitution, or pay fines, charges, or assessments for certain activity (such as tree cutting) that did not receive prior approval.

CMA may initiate legal action as it deems required to enforce all or part of the Regulations including legal action requesting an injunction or restraining order.

C. Appeals

The DACC has the authority to approve or deny design modifications, construction applications, and building plans. It will also make recommendations and discuss them with the owner. Appeals of DACC-denied applications must be requested, in writing, to the Board of Directors, which is solely responsible for making a final decision.

D. Waivers

Application of the requirements in these Guidelines and Regulations will sometimes cause undue hardship because of unusual or special circumstances, such as natural obstacles or prior exceptions. Therefore, an owner may request, in writing, a waiver of one or more such requirements, which must be granted only for demonstrated cause. The DACC or the Board may grant such a waiver, in whole or in part, if the waiver is reasonably necessary to mitigate the problem; it is subject to such conditions as will be required to protect CMA's interest (*e.g.*, it is limited to the duration of the conditions that warrant the waiver); and it must not have a significantly adverse effect on other lots or common property.

E. Documentation

The DACC must maintain documentation of all submissions and correspondence or other documents regarding the submissions, by lot number and date, for future reference and use. All documents must clearly indicate the lot number and date in the upper right-hand corner to facilitate filing.

Once a project is completed, the DACC must gather and provide all documents associated with it to the CMA Secretary for inclusion in CMA official files, which must be physical, reduced to a widely standardized electronic format, or both. The current owner(s) of any CMA property must be granted access to all the DACC documents regarding their property. CMA members must request access to the DACC documents regarding any property, but documents must be reviewed and redacted as required by then current law. Copies of documents must be requested and owners may be charged reasonable costs for duplication and time.

III. Modifications to Existing Property

The Design Guidelines are provided for owners for work that requires approval after original construction is completed such as exterior changes including minor additions and/or alterations to the house or property. Major additions must be treated as new construction.

All modifications must comply with these Design Guidelines and Building Regulations.

A. Design Guidelines

The Design Guidelines provide information for a variety of property modifications. Certainly, there will be other modifications not included in this list. Owners are required to contact the DACC prior to starting any modification not included below to determine if an application is required.

1. Antennas and Satellite Dishes

Antennas and satellite dishes must be installed on the owner's property, not CMA common property, and minimize visibility from neighboring lots and roadways. Satellite dishes greater than 36" in diameter are not allowed.

2. Clothes Drying

Clothes drying should be located only in screened areas and should not be visible from neighboring property or the road.

3. Exterior Finishes

Replacing the siding or repainting the exterior of a house with the same material and/or paint color does not require DACC approval, unless the previously approved colors are no longer allowed, or the previous color was not approved by application to the DACC. However, any change to the exterior of a house requires a modification application and DACC approval. If an owner is unclear if an application is required, they should ask the DACC.

The owner must submit a sample of the paint or stain to the DACC for approval prior to putting the new material on the house or trim. High gloss finishes are not allowed on house siding. The paint sample, along with the manufacturer designation is required to be submitted. See Exterior Colors, Section IV.C.3, for more information.

4. Fire Pits/Receptacles

Wood burning external fire receptacles are permitted if they are units manufactured for that purpose. Steel drums or other containers not specifically designed as an outdoor fire receptacle are not permitted. Receptacles must be of sturdy metal design and kept in good repair. Units must contain all coals and embers, with a metal mesh cover made to fit the receptacle to prevent flying sparks and embers. Fire receptacles must be always attended by an adult when lit. Open or in-ground fires or receptacles with flames extending significantly beyond the receptacle or its cover are not permitted under any circumstances.

Exterior gas firepits that are UL certified and in good condition are permitted if they are always attended by an adult knowledgeable of its operation when in use. DACC-approved permanently installed stone or brick barbecues with chimneys and spark arrestors are also permitted.

Any user (owner, member, guest, or renter) of an exterior barbeque or fire receptacle must have an AB or ABC rated fire extinguisher in the immediate vicinity of an in-use receptacle.

Barbecues and fire receptacles will require DACC certification from time to time. If certification is not granted for good cause, the facility or device must be removed.

Stored firewood must be stacked at least 30’ away from any structure. Firewood must not be stored on any property easement or CMA common land.

5. Garbage and Trash

All outside refuse must be in containers kept securely covered, located, and enclosed so they do not distract from the natural forest environment and are not unsightly from the road or neighboring property. Wooden receptacles or enclosures can be left unfinished or painted either dark brown or dark green. Trash containers must be designed and constructed to withstand bear or other animal damage.

6. Hot Tubs

Hot tubs, Jacuzzis, and small pools (less than 24” deep) are allowed but must be screened from view of neighbors and roadways and be adjacent to the house. They require approval by the DACC or Board in the initial construction approval or subsequent modification submission.

7. Playground equipment

Playground equipment must be primarily of colors cited in Exterior Colors, Section IV.C.3. Small components of the equipment are allowed to be colored (*i.e.*, green swing seats, yellow bars, green plastic slide, etc.). Equipment must be maintained in good working order.

8. Rain Barrels

Rain barrels are permitted when properly installed on approved downspouts on a house. No modification application is required, provided they are colored in accordance with Exterior Colors, Section IV.C.3, and are not visible from the front of the house.

9. Roof Repairs/Replacement

Owners must maintain their roof in good repair. Repairs or replacement of the same or similar type/color do not require DACC approval. Change in color, type, or style (asphalt to metal; three-tab to architectural, etc.) require approval prior to installation. Requirements for roofing are outlined in Roofing, Section IV.A.4.

10. RVs, Trailers, and Boats

No house trailers, fifth wheels, recreational vehicles, tents, or truck campers are permitted except for non-residential uses, such as temporary construction trailers. Boats are allowed only if adequately screened from neighboring property and roadways.

11. Signs

The County and CMA are responsible for installing and maintaining directional, road, and general lot information signage on the roads. Owners are responsible for and must install 911 address numbers in accordance with state and county requirements. Owners have the option to display a house "name" and "lot number" signs on the owner's property or, in the case of a long or shared driveway, at a DACC-approved location that clearly applies to a specific residence, preferably at the same location and on the same post as the 911 address sign to assist emergency services in property identification. The style must be that of the State Park system: dark brown background with yellow reflective letters/numbers, of the same font. Signs should be affixed to pressure-treated posts only, not on trees.

12. Tree Removal

Except where approved in writing by the DACC, trees over 6" in diameter and dogwoods of any size must not be cut, topped, or trimmed on any lot or on common ground. Owners do not need DACC approval to remove dead trees on the owner's property or trees located within 10' of their house, garage, or carport. Requests to remove other live trees that pose a danger to structures must be reviewed by DACC. If there is any doubt about whether removing trees or vegetation would require approval, owners/builders should ask the DACC prior to doing any work.

13. Walls and Fences

Fences are generally discouraged. If they must be built, in children's play areas for example, they should be of wood or split rail. Chain link fences or exposed concrete block walls are not permitted. Retaining walls, where required, should be kept as low as possible and be constructed of preservative-treated wood or faced with stone.

B. Application Procedure

The owner should contact the DACC Chair to discuss planned changes and review procedures. This ensures the lines of communication are open and a tentative schedule can be developed. As details of projects and needed information and processes will likewise vary based on the request, this procedure is general and will be adapted based on the request. During this contact, the DACC representative and owner must agree on what CMA, local, state, and national building codes apply. The DACC representative must advise if a site visit is required and schedule, if appropriate. The DACC representative must advise the owners what to submit, the number of copies (if not electronic), and how to submit them. The DACC must ensure distribution to the committee and, if necessary, the Board.

1. Submission Requirements

The owner prepares a submission consisting of Appendix A: Modification Application and submits it to the DACC by hardcopy or email attachment with all supporting documentation.

Applications must not be accepted by the DACC if the owner is more than thirty (30) days in arrears on any CMA assessment.

If the project includes a significant structural change, owner must comply with Building Regulations. Decks, porches, and similar construction being replaced with the same design may use the original drawings, certifications, and approvals, provided required codes haven't substantially changed. Owners may request and use copies of original designs they have or ask if the DACC has copies of them available.

If the work involves changes in the site, then a site plan must be submitted. If the work relates to the exterior of the house (new windows, etc.) then a drawing showing the new elements and dimensions must be submitted. If the work is minor in nature, a photograph, sketch, or written description will suffice.

If there is any digging, trenching, or other major ground disturbance work to be done, the owner must check to ensure utility lines and connections are not impacted. The previous as-built drawings, Miss Utility and CMAWS must be consulted, and the lines marked for avoidance.

The owner must ensure the site is completely cleaned and returned to the original condition except for approved modifications. Failure to do so will incur a fine, fee, or charge from the DACC or Board along with charges for hiring a contractor to do restore the property, with owner permission granting such action as a part of the application, all charges to be paid by the owner.

2. Process Schedule

The DACC must review, discuss, and approve or deny the application within thirty (30) days of the submission.

The owner may submit an appeal to a denial to the Board of Directors for final decision. Appeals must be submitted, in writing, to the Board within thirty (30) days of the issued denial. The Board has thirty (30) days to render a final decision and may require a site visit within this time frame.

The owner must seek approval from the DACC for any deviation from the intended plan, with similar appeal process for any denial.

IV. Building Regulations

The Building Regulations are provided for owners for new construction of houses or facilities, or for major modifications to the property.

All new construction must comply with the Design Guidelines and Building Regulations.

A. General Guidance

The following criteria are essential for the maintenance of the nature of our community and the protection of our environment and natural resources.

1. Location on Lot

To ensure a house location that facilitates access and construction ease, yet take full advantage of aesthetic possibilities, the site plan must:

a) be compatible with sewerage requirements, e.g., high enough to flush sewer by gravity or else suitable for septic tank and drainage field, where this alternative is legally permitted and

approved by the CMA Board or DACC Committee. A lift station will be required in certain areas where gravity flushing is not possible.

b) locate the proposed house or major modification, including deck, porch, garage, etc. and any other permitted structure, not less than 25' between the edge of the building and the property lines; not less than 60' from the front property line of the lot (the front is defined as the portion of the lot parallel to the main vehicular access road); and not less than 15' from the rear lot line, defined as opposite the front (25' from all other lots); not less than 15' between the lot and common land on the side or rear yards (25' from all other lots). On corner lots, with the possibility of having two fronts, the road with more traffic must be considered the main road. Shared driveways and parking areas should be considered to reduce construction and maintenance. Shared driveways must be coordinated with all affected owners and a right-of-way secured prior to submission of Request for Approval.

c) provide one parking space for each bedroom; with a minimum of two and maximum of five parking spaces. Rooms that can readily be used as bedrooms must be counted for the purposes of establishing parking space requirements. Applicable parking spaces in garages must be counted as part of the required spaces.

d) minimize the destruction of trees and shrubs, especially large and well-established specimens, or exceptionally desirable species like dogwood, redbud, and mountain laurel.

To achieve the most advantageous situation for privacy, view, etc., the owner should attempt to orient the front of the house away from other house sites nearby rather than toward them. Each house should be sited as to have minimum visibility from other houses and future building sites.

2. Number of Buildings

Only one residential building will be erected per lot. Garages and carports must be built in accordance with section 3, below. Separate animal shelters must not be placed on the property.

3. Carports and Garages

A one- or two-vehicle carport or garage is allowed. Only one carport or garage is allowed on the property. Carports or garages must be attached to the residential building or built separately. Carports and garages are for temporary parking of operational vehicles only. Conversion of a garage or carport to any other use, requires prior approval through the DACC.

a) The design must be the same, closely resemble, or compliment the residence.
b) Exterior colors must comply with Exterior Colors, Section IV.C.3.
c) Structures must be designed to carry snow loads common to the area.
d) Carports or garages are not permitted to be over 600 square feet.
e) Open sided carports must not be used for storage of anything other than operational vehicles, excepting that a firewood lean to/storage area may be incorporated in the construction if the storage is at least 30' away from the residence.

4. Size and Quality

The minimum size dwelling that can be routinely approved is 1,000 square feet of occupiable space, excluding decks and porches. A maximum allowable size is 4,300 square feet of occupiable space for lots up to an acre in size. For lots greater than an acre, 4,800 gross square feet occupiable space is allowed. Gross

square footage is defined as outside of exterior wall to outside of exterior wall times the number of floor levels of living space.

The maximum number of bedrooms permitted is five. Occupiable space does not include crawl spaces, mechanical rooms, decks, balconies, porches, garages, or carports. Unfinished basements or other unfinished rooms with a habitable ceiling height of 7' 6" must be counted as occupiable space.

5. Landscaping, Thinning, and Planting

Owners should give high priority to preservation or enhancement of natural terrain and natural plant growth. Dead, damaged, or diseased trees, weed trees, or trees leaning towards a house should be considered for removal. Modifications and additions should harmonize with the setting. It is desirable that landscaping for adjacent lots blend with one another and that rigid or formal dividing lines be avoided. All areas of the site disturbed by construction must be restored to a natural condition.

6. Vistas

A vista is defined as "a view to the next ridge in not more than two directions, providing a gentle, soft view(s)." Cutting of new vistas on CMA property is not allowed except for some T section properties which CMA, Inc. and the developer granted easements for vistas. Vista maintenance is permitted on one's own property or on common land only with previous written approval from the DACC (exception: T section, as noted above). Vistas must not be provided or maintained on the property of others, unless written permission of the owner(s) affected has been granted, conveyed to, and approved by DACC. In each view, trees or branches must be selectively removed, provided the overall width of the view is not more than 30 feet. If there are two vistas, they must be separated by at least 30 feet. Open, and/or abruptly cleared swaths are not permitted.

For T-Section owners only, a written request for approval of a vista is required to be submitted to DACC from the owner with the site plan and general view(s) located. Trees to be trimmed or cut must be tagged in the field. Trees must be cleared selectively, starting with dead and sickly trees with a preference to retain dogwoods, redbuds, and other desirable varieties. When practicable, large trees must be pruned, with limbs removed, rather than being felled. Trees must not be "topped." Photographs must be taken and kept by the owner and DACC for future reference in re-establishing a vista. Felled trees must be cut and stacked for firewood or removed from the property.

7. Utilities

Prior to excavation for construction, the owner and/or builder must consult with the DACC as to CMA owned and operated utilities servicing the lot. Owner/builder must also contact the appropriate utilities (Miss Utility of WV: 1-800-245-4848) to locate and mark all identifiable lines prior to digging. Landscaping or trees must not be planted above or within 10' of water, sewer, electric, cable, or telephone lines.

8. Utility Easement

CMA expressly reserves an easement 6' wide along the inside of the perimeter of each lot for electrical transmission lines, water and sewer pipelines or associated equipment, the construction and maintenance of stormwater runoff ditches, culverts, and/or pipelines, telecommunication lines and infrastructure, or conduits under the surface of said reservation for any lawful purpose whatsoever. Structures must not be built upon the property affected by said easement and/or reservation of right-of-way and said property must

always be open to CMA, contractors hired by and operating on CMA's behalf, and/or any public service corporation which requires the use of said right-of-way.

9. Fire Safety

Smoke detectors are required in accordance with West Virginia Code. Owners are required to have and maintain at least one ABC rated fire extinguisher on each level of a residence. Owners are encouraged to develop and make available to all that use a residence a fire escape plan for their residence as well as for exiting the community.

The CMA water system does not support installation for fire suppression systems in residential housing and such are not authorized for installation. See Water and Sewer, Section C.9, for more information.

B. Building Codes

Until Morgan County adopts a building code, the DACC recommends, in the interest of quality and safety, that the owner include as a part of the contract with the builder and/or contractor the requirement that construction conform to one of the recognized national model codes such as the current edition of the "CABO One and Two Family Dwelling Code" (24 CFR 200.926b(c)) (CABO Code).

The owner must engage an engineer or architect, currently registered in the state of West Virginia, Virginia, Maryland, or Pennsylvania, or in Washington, DC or an independent, certified, professional inspection service to oversee the construction of all aspects of the owner's house to ensure it is built according to the owner's plans and specifications. The inspector should be independent from the contractor or builder. The inspector's name and current registration, or certification number is required on the DACC application. This helps assure the owner that his/her Coolfont house meets all appropriate requirements of the State Health Department, the Morgan County Subdivision Ordinance, state law, and national building codes. Ultimately the owner is responsible for the quality of his/her house.

C. Design Requirements

To preserve the natural atmosphere of the woodlands, houses should generally blend with the environment. Each lot has been designed, and each house should be sited, to have minimum impact on the views from other lots, houses and building sites. Exterior materials and lighting should be chosen with this in mind. Exceptions to the below requirements for technologically improved building materials must be requested as a waiver in writing to the Board via the DACC using the process and forms indicated in Section IV.D and the Appendices.

The DACC requires the following regulations:

1. Exterior Massing and Roofline

The form and shape of the houses must be appropriate to a mountainside forest. Sloped or shed roofs are required to have a minimum slope of 3" per foot. Excessively large, exposed areas of foundation, non-aesthetic stilts or columns visible from roadways or neighboring property and not fitting into the natural environment should be avoided.

2. Exterior Walls

Fir, cedar, redwood, oak boards, or texture 1.11 plywood, cementitious simulated wood siding, and natural stone are acceptable as an exterior finish provided their color harmonizes with the natural surroundings. Vinyl or aluminum siding are not permitted. Foundation walls (basement walls) must be covered with an acceptable material; brick, stone or colored pargeting (paint matching or slightly lighter or slightly darker than the siding) is acceptable.

3. Exterior Colors

The colors of all exterior finishes must be natural or earth shades of gray, brown, or green. Colors must be selected for harmony with the natural environment rather than any strong contrast. Color samples for all exterior elements (doors, windows, door and window trim, shutters, soffits, pargeting, siding, roofing, railings, and all wood trim, etc.) must be included with the approval application. Samples can include paint chips, or currently accessible online links to specific paint colors.

Highly reflective finishes, such as high gloss paints, must not be used on exterior surfaces with the exception of hardware items. Semi-gloss paints or stains are approved for external trim surfaces. Bright accent colors or white are not to be used on trim, shutters, soffit, or fascia.

4. Roofing

Acceptable roofing materials include class A fire rated, fiberglass shingles; asphalt shingles in “three tab” or “architectural” style; metal standing seam roofing; metal shingle-look styles; slate and slate look metal shingles. Wood shingles or shakes are not acceptable because they are highly flammable. Other materials and styles must be approved by the DACC or Board with a request for exemption that includes technical data and a sample of the product. Roofing colors must conform to Exterior Colors as noted in Section IV.C.3 above.

5. Exterior Lighting

The light source of any exterior lighting fixture should not be visible from or infringe upon neighboring property, because this detracts from the atmosphere of privacy in the woods. External area lighting for security or entertainment purposes is allowed, but must be aimed so it does not impact, intrude, or interfere with neighbors’ enjoyment of their property, and its use must be of short term, limited duration. Low intensity path lights or tree up lighting are more desirable than general yard lighting. Floodlight use must be minimized.

6. Drainage

Drainage water from paving or landscaping should sheet flow over large areas of ground or be routed into appropriate drains to avoid soil erosion. Roof and/or gutter drains should spill into gravel beds or drain tile and be routed away from foundations. Large concentrations of surface water provide breeding grounds for nuisance insects and should be promptly resolved.

Owners must grade driveways to prevent discharge runoff onto CMA roads and orient runoff to constructed or natural roadway swales or drainage. Where driveways cross roadway drainage ditches, owners must install a minimum 18” diameter corrugated HDPE, galvanized metal, or other approved piping. New or replaced piping must be at least 30’ long and extend a minimum of 2’ on both sides beyond the maximum flair of the driveway apron. The piping must be covered to a depth of no less than 12” measured from the top of the pipe to the underside of any paving material. The driveway apron must provide an adequate turning radius at the road, especially on steep driveways. The inside-turning radius should be at least 20 feet. Failure to

adequately grade and maintain a driveway or culvert resulting in damage to CMA roadways or property will result in assessment(s) to the owner for damage correction.

7. Footings and Foundations

Footings must be on undisturbed soil below the frost line but not less than 30" below grade, 36" recommended, and provided with adequate reinforcement. All basements must have proper foundation drainage. Structures built entirely on piers are not permitted.

Crawl spaces or basements must be conditioned spaces or must be vented or equipped with dehumidifiers to prevent mildew problems. Dirt or gravel in the crawl spaces should be covered with air impermeable barrier polyurethane for moisture and radon control. Owners are encouraged to ensure waterproofing of and drainage away from foundations due to seasonal springs, significant high level ground water and surface springs, and stormwater runoff. Consider a built-in whole house dehumidifier or dehumidification for basements or crawl spaces. Consider radon prevention and mitigation measures to include heavy gauge air impermeable barriers in crawl spaces and basements physically attached to the walls and piers, and extraction fans for crawl spaces, basements, or ground floor slabs.

A termite shield must be placed on top of all foundations and supporting structures. Pressure treated wood suitable for ground contact must be used for decks and porches, balconies, foundation sills, and all wood in contact with concrete or masonry. Special care must be taken to ensure the adequate design of foundations for stone and brick fireplaces.

8. Insulation

The International Energy Conservation Code (IECC) recommendation for the panhandle of WV includes a minimum insulation of R-13 in walls, R-19 in floors above crawl spaces, and R-38 for roofs. Higher levels are encouraged along with air sealing all exterior cavities for both insulation and insect infiltration purposes.

9. Water and Sewer

The water and sewer systems that serve CMA were designed and approved on the basis of a seasonal community of single-family houses. All water leaks occurring from the water meter to an owner's house must be charged to the owner. Water and sewer hook-up fees (tap fees) are required and payable by the homeowner.

Owners/Builders must coordinate water and sewer utility line placement with the CMA Water and Sewer Utility (CMAWS), providing detailed plans of water and sewer lines and any changes to them.

Owners must request service via CMAWS using Form 4 or the CMA New Owner Contact Form and include billing information. CMAWS will install a water meter, meter crock, meter, and shut-off valve with union connections, and placed near the property line. Installation must not occur until construction grading is substantially completed so the crock is at ground level and protected from flooding/drainage issues, and to ensure proper depth of the line. Owners/Builders are not permitted to adjust or tamper with the meter. Owners will be charged tapping/connection charges for both water and sewer service, refer to the CMAWS tariff structure available at the CMA office and provided to the owner after service is requested.

Water and sewer lines must be located a minimum of 36" below grade to prevent freezing. Water service and plumbing must conform to the current CABO Code. Houses at higher elevations must coordinate with CMA to identify the adequate pressure zones and whether owners need to install a pressure pump.

Water lines that are to be located under driveways must be placed in a sleeve of at least schedule 40 PVC pipe of appropriate size.

Toilets, sinks, and showers must meet national building codes for water use and low flow designs. Garbage disposals are not recommended due to the use of septic system tanks.

Sewer lines that are to be located under driveways must be constructed of at least schedule 40 pipe and must be sleeved with at least schedule 40 PVC pipe of appropriate size.

Primary and secondary septic tanks, arranged in series, each of 1,000-gallon capacity, are required. Septic tanks must be constructed of reinforced concrete, fiberglass, polyethylene, or other industry standard material approved by the DACC. The septic tank clean-outs must be easily accessible at grade for periodic pumping and in accordance with state law and CMA's Septic System Maintenance Policy.

Trenches for all water, sewer, electric, cable, and telephone lines should be dug with consideration to the slope of the lot and to preserve the natural setting. Trenching must be properly "bedded," filled, and restored to the original grade after completion.

All exterior water and sewer lines and connections must be inspected and approved by a professional inspector prior to being backfilled.

10. Plumbing and Heating

To prevent freezing, all plumbing must be run through interior portions of the house, rather than exterior walls. Water pipes must incorporate a drain mechanism at the lowest level possible to allow owners to winterize the residence and protect from frozen and burst pipes. Owners that don't use such a mechanism are encouraged to insulate and maintain minimal temperatures throughout winter and during power outages.

Owners that don't drain/winterize their residence are encouraged to maintain their house at a minimum of 45 degrees Fahrenheit and incorporate a means of notification if the temperature drops so they can take action to prevent frozen pipes.

11. Chimneys

All chimneys must conform to national building codes or manufacturer's installation instructions. Care must be taken to ensure that each section of a "zero-clearance" chimney is installed according to the manufacturer's instructions. Chimneys should be cleaned regularly, based on usage, to prevent chimney fires.

12. Construction Activity

Construction materials, debris, packing boxes, stumps, and other waste materials must not be buried or burned on site. Trees felled and other materials suitable for burning in a fireplace must be cut into appropriate lengths and neatly stacked on the property or be removed from the property. All other left-over construction materials and debris must be removed from property.

Construction debris must be cleaned up on a regular basis and no less than weekly. Debris must be removed from site or stored in a dumpster to keep the mountainside from looking unsightly. Dumpsters or construction trash receptacles must be in an inconspicuous location and be removed when house construction is complete.

Loud construction work is permitted between 7:30 AM and 5:00 PM, Monday through Friday. Loud construction activity includes, but is not limited to, tree removal, framing and carpentry, concrete pouring, roofing, outside use of air compressors, power tools, etc. Only construction activity of a quiet nature is permitted at other times.

D. Application Procedure

The owner should contact the DACC to discuss their plans and review procedures. This ensures the lines of communication are open, all parties that need to be are involved, and a tentative schedule can be developed. The DACC representative must provide advice regarding the process, provide the Appendix C: Checklist for New Construction or Major Modification, and will provide a relatively accurate topographic map. The owner/builder must use this topographic map or provide their own if it is reasonably accurate in the opinion of the DACC.

1. Submission Requirements

The owner prepares a submission consisting of Appendix B: Application for New Construction or Major Modification and submits it to the DACC by hardcopy or email with all supporting documentation/attachments.

Applications must not be accepted by the DACC if the owner is more than thirty (30) days in arrears on any CMA assessment.

2. Process Schedule

DACC must review all written plans for improvements on all lands within the Association and approve or deny on behalf of the Board within thirty (30) days of submission, using for criteria the CMA governing documents and any then applicable CMA rules, regulations, and guidelines, including any referenced building codes.

If preliminary approval has been requested, a written approval of the preliminary plans from the DACC to the owner must be provided within thirty (30) days. Owners will proceed with the development of the final plans and documentation considering the review comments from the preliminary submission.

In the event the DACC fails to send or provide written notice of approval or denial within thirty (30) days after receipt of a formal and final submission, the owner must contact the Board, in writing, requesting action. If the Board does not respond in writing or by email with notice of approval or denial within fifteen (15) business days of receipt of the owner's request, approval will be deemed to have been granted.

Any changes to the approved site plan, utilities, and building exterior must be approved by the DACC with CMAWS concurrence of water and sewer utilities prior to implementation.

E. Submission Package

The submission requirements will vary depending on the nature of the proposed construction and/or changes and must be agreed upon with the DACC Chair.

A copy of Appendix C: Checklist for New Construction or Major Modification must be provided to owners when they alert the DACC they are beginning the new construction process.

A submission package for the construction of a new house or major modification of the plans and site development must include, as a minimum, the following items.

1. Application

A completed "Application for New Construction or Major Modification" form (Appendix B).

2. Site Plan

A Site Plan is required for new construction or major modification and should include:

a) A scale not less than 1'=30'
b) The lot number and owner(s)' name
c) A north arrow, lot dimensions, house distances from lot lines, revised and proposed grading, driveway, parking and walkway dimensions, landscaping, and all other constructed elements
d) Contour lines with 2' intervals (CMA electronic resources include a map version that is acceptable and may be used; however, the owner is ultimately responsible for the documents relative accuracy. Contact DACC if you would like a copy of CMA's contour map.)
e) Location of all existing or proposed improvements and driveway and utility layout including water, sewer, electric, cable, and telephone routing
f) Direction and width of proposed vistas (only DACC previously approved vistas or those granted within the T section are allowed)
g) Location of all trees measuring 6" diameter or more when measured 4' above ground level that are located in the area of construction. Trees proposed for removal must be identified. Trees not located in the general area of the proposed construction, including site improvements, need not be shown
h) The location of all proposed utility installations, including the proposed location of the water meter and septic tanks, and the proposed point of hook-up to the sewer. The DACC must share these plans with the CMAWS Chair and contractor for determination of adequacy. CMAWS must work with the owner but has final approval of water and sewer connection points. Upon completion, the homeowner must supply the DACC with a final as-built site plan showing actual location
i) The proposed drainage plan showing revised grading and any culvert installations to accomplish adequate drainage

3. Building Plans

Provide a copy of the Building Plans with the application. Drawings must be at a scale of not less than ¼" equals 1' showing as a minimum a structural plan of each floor level, a roof framing plan, and a foundation plan.

4. Exterior Views

Drawings at a scale not less than ¼" equals 1' showing as a minimum elevations of house exterior from all sides relating to the proposed topographical plan.

5. Exterior Details

Provide descriptive information on all building exterior materials to be used to include as a minimum:

a) Siding, foundation, fascia/trim, doors, windows, door/window trim, roofing, retaining walls, chimney, paving, soffit, paint
b) Manufacturers' name, material identification name/number, material type, color samples or swatches. The DACC will request the owner/builder to provide samples of uncommon/unknown materials at the site visit or internet links for review

F. Design Review Procedures

The owner prepares a submission – either hard copy or electronic - consisting of Appendix B: Application for New Constructions or Major Modification, Site Plan, Building Plan, Exterior Views, and Exterior Details and submits it to the DACC per guidance from the DACC representative based on whether it is hardcopy or electronic. Incomplete applications will be returned to the owner for correction and must be re-submitted to the DACC.

On receiving a complete submission, the DACC will initiate their review and schedule a site visit with the owner and others required. The DACC has up to thirty (30) days for their review, site visit, and response to the owner.

The site visit must include the owner(s), the builder(s), the building inspector, at least one DACC representative, and a CMAWS representative; CMA encourages the architect or designer to participate. The DACC may waive the inspector attending, if known to the DACC to understand DACC requirements and previously attended a site visit. The process includes walking the site, posing questions, and offering suggestions and comments.

Appendix C: Checklist for New Construction or Major Modification will be reviewed, and annotations made, if required. The intent is for all items of construction to be agreed on at the end of the visit. All parties must execute the agreement; it is considered a legal and binding agreement as to what is required to be constructed. The DACC will make and distribute copies to all relevant parties.

If the DACC and owner can't reach agreement and the DACC recommends denial or partial denial, the Board then has thirty (30) days to consider the denial, hear from the owner, and respond with a final decision. Any attempt by the owner to begin or carry-on construction without approval by the DACC or Board or having been told to stop by them will result in legal action by the Board to enjoin further construction and correct or remove any construction not in accordance with CMA stipulated and/or agreed plans.

After the DACC or Board has approved the submission, with any modifications, the owner may begin construction.

G. Owner Responsibilities

The owner(s) must clearly mark the boundaries of the property with appropriate flags, stakes, and/or signs. They must further ensure appropriate protection of the surrounding ground, vegetation, and trees not on their property, and request/receive written permission for use of such property from CMA or neighbors.

The owner(s) must arrange for and execute any rights-of-way or easements for the needed driveway, re-routing of utilities, or other requirements that arise.

The site must be marked as indicated above regarding tree removal as well as by Miss Utility and the CMAWS to avoid damage to any existing utilities.

The owner/builder is responsible for coordinating with the CMAWS for placement of water and sewer connections. This must be done at the point of substantial completion (see below) or earlier for testing of water lines. In either case, once CMAWS connections and meter are installed, CMAWS must advise the Treasurer to bill required water and sewer hook-up fees and start recurring billing for water and sewer services.

All changes that occur during the construction (e.g., additional tree removal, changes in location or size of items agreed to at the site visit, etc.) must be approved in advance and in writing by the DACC. If changes are made without approval, the owner will be required to correct the construction to the approved plans at the owner's/builder's cost.

The owner must notify the DACC when the house is substantially complete, adequate for the intended use, all systems functioning, and ready for occupancy. The owner has thirty (30) days from this date to submit final as-built drawings to the DACC. The revised drawings must identify all changes to the site from the original plans: contours; all utility line placement and connections; exterior design, exterior detail. These drawings must be sketched or marked on the original approved plans, with any important dimensions noted. Failure to do so will result in fines or charges by the Board.

The owner must ensure the site is completely cleaned and graded to agreed plan conditions within thirty (30) days of the substantial completion date; failure to do so will incur a fine, fee, or charge from the DACC or Board to hire a contractor to do so with owner permission granting such action as a part of the application, all charges to be paid by the owner.

At the time of substantial completion, the DACC must advise the CMA Treasurer the house is complete. The Treasurer must invoice the owner for the additional, pro-rated annual assessment for a house. If not previously billed and paid, the CMA Treasurer must also bill CMAWS water and sewer hookup fees and begin recurring billing for water and sewer.

The owner should keep record copies of the original construction plans and specifications, any approved changes, and all DACC correspondence for future reference, any subsequent needed change submissions, and for transfer to a new owner.

APPENDIX A: MODIFICATION APPLICATION

Owner to complete this form and submit via hardcopy or email to Development and Architectural Control Committee (DACC). Include all supporting documentation in hardcopy or as email attachments.

In accordance with the Design Guidelines and Building Regulations, dated October 1, 2021, I/we the undersigned owner(s) of Lot _____ submit the following information for consideration by the DACC:

Describe modifications proposed:

_____

_____

_____

_____

Attached documents include:

____ Site Plan ____ Building Plan

____ Contractor's Proposal ____ Exterior Views

____ Exterior Details ____ Other: _____

We, the owners, certify that we have received, read, and fully understand the Design Guidelines and Building Regulations. We certify that all features of construction, modification, and usage must be in full compliance with CMA requirements.

We further acknowledge that legal action will be taken at any time by CMA to compel compliance.

Submitted by:

_____ _____

Owner(s) Name(s)

_____ _____

Signature(s)

_____

Address

_____ _____

Date Phone

Modification Application – Continued

Contractor:

_____

Name

_____

Address

_____ _____

Phone WV License #

Additional Comments:

_____

_____

_____

_____

_____

DACC Approval:

_____ _____

Name Date

_____

Signature

APPENDIX B: APPLICATION FOR NEW CONSTRUCTION OR MAJOR MODIFICATION

Owner to complete this form and submit via hardcopy or email to Development and Architectural Control Committee (DACC). Include all supporting documentation in hardcopy or as email attachments.

Preliminary _____ or Final _____ (check one)

In accordance with the Design Guidelines and Building Regulations, dated August 14, 2021, I/we the undersigned owner(s) of Lot _____ submit the following information for consideration by the Development and Architectural Control Committee:

1. SITE PLAN - Attach drawing with all requirements of indicated in IV.E.2.
2. BUILDING_PLANS - Attach drawings showing all requirement indicated in II.E.3.
3. EXTERIOR VIEWS - Attach drawings showing all requirements indicated in IV.E.4.
4. EXTERIOR DETAILS – Attach descriptive information in accordance with IV.E.5.

   a) Siding: _____
   b) Foundation: _____
   c) Fascia & Trim: _____
   d) Doors: _____
   e) Windows: _____
   f) Door and Window Trim: _____
   g) Roofing Material: _____
   h) Retaining Walls (if any): _____
   i) Other: Attach a separate document if more space is needed

We, the owners, certify that we have received, read, and fully understand the Design Guidelines and Building Regulations. We certify that all features of construction, modification, and usage must be in full compliance with CMA requirements.

We further acknowledge that legal action will be taken at any time by CMA to compel compliance.

Submitted by:

_____ _____
Owner(s) Name(s))

_____ _____
Signature(s)

_____
Address

_____ _____
Date Phone

Application for New Construction or Major Modification – Continued

Plans Prepared by:

_____
Name

_____
Firm

_____
State Certification or License #

_____
Address

_____
Phone

_____
Date

Building Inspections to be done by:

_____
Name

_____
Firm

_____
State Certification or License #

_____
Address

_____
Phone

_____
Date

Contractor:

_____
Name(s)

_____
Signature(s)

_____
Address

_____
Phone

_____
WV License #

_____
Date

Additional Comments:

_____

_____

_____

Application for New Construction or Major Modification – Continued

DACC Approval:

_____ _____

Name Date

_____

Signature

Appendix C: Checklist for New Construction or Major Modification

Date: _____

Attendees:

Owner: _____ Architect: _____

Builder: _____ Inspector: _____

DACC: _____

Checklist: Check that each item is included in the submission documents.

SITE PLAN

2' contour lines:	☐	Utility routing and connection locations:	
Driveway routing:	☐	Electric	☐
Driveway culvert:	☐	Water	☐
Parking spaces:	☐	Sewer Connection	☐
Trees to be removed:	☐	Septic Tanks Location	☐
Vista location/width:	☐	Telephone	☐
Drainage plans:	☐	Internet/Other	☐

BUILDING PLANS

Number of Bedrooms:	☐	Roofing Plan:	☐
Floor Plans:	☐	Foundation Plan:	☐

EXTERIOR VIEWS

All elevations included:	☐	Ground level shown on all drawings:	☐

EXTERIOR DETAILS

Complete schedule of external materials: ☐

Submission Changes Required/Additional Comments:

_____

_____

_____

_____

New Construction or Major Modification Checklist – Continued

Site Visit Agreements:

Signed:

Owner: _____ Architect: _____

Builder: _____ Inspector: _____

DACC Approval:

_____ _____

Name Date

_____

Signature